

Conditional Waiver and Release on Progress Payment

Form 1 of 2 · Takes effect only when the payment described below has cleared

Summit Mechanical Contractors

4120 Industrial Way, Suite 200, Denver, CO 80216
(303) 555-0148 · office@summitmech.com · Lic. C-2214-MC

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

CLAIMANT (YOU)	CUSTOMER (WHO HIRED YOU)	OWNER OF THE PROPERTY	PROJECT / PROPERTY
Summit Mechanical Contractors 4120 Industrial Way, Suite 200, Denver, CO 80216	Brightline Builders, Inc. 1550 Wewatta St, Denver, CO 80202	Harbor Point Development LLC 900 Wynkoop St, Denver, CO 80202	Harbor Point Medical Office – Building B 2200 Harbor Point Blvd, Denver, CO 80216

PAYMENT

the progress payment this waiver covers

THROUGH DATE	PAYMENT AMOUNT	PAID BY (MAKER OF CHECK)	REFERENCE (APPLICATION / CHECK NO.)
August 31, 2026	\$122,557.50	Brightline Builders, Inc.	Application for payment no. 3

WAIVER AND RELEASE

On receipt by the claimant of a check from the customer named above in the payment amount stated above, payable to the claimant, and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanics lien, stop payment notice or payment bond right the claimant has on the job of the owner named above, located at the project stated above, to the following extent.

This release covers a progress payment for labor, services, equipment or materials furnished to the customer through the through date stated above only, and does not cover any retention, any pending change orders or extras, any disputed items, or any labor, services, equipment or materials furnished after that date, as listed under exceptions below. Before any recipient of this document relies on it, that person should verify evidence of payment to the claimant.

EXCEPTIONS – THIS DOCUMENT DOES NOT AFFECT

rights the claimant keeps after signing

RETENTION WITHHELD	PENDING CHANGE ORDERS / EXTRAS	DISPUTED CLAIMS	FURNISHED AFTER THE THROUGH DATE
\$28,680.50	\$5,784.50	\$0.00	Not covered

DESCRIPTION OF EXCEPTIONS – change order numbers, amounts and status; disputed items

CO-003 (Add 2" condensate drain from AHU-3 per M-402 Rev. 2 (RFI-014), \$5,784.50) submitted August 28, 2026 and not yet approved as of this waiver.
Retention of \$28,680.50 withheld through application no. 3 remains due.

CLAIMANT'S SIGNATURE

sign with the pay application; effective when the payment clears

	Dana Whitfield, Project Manager	Summit Mechanical Contractors	09/03/2026
SIGNATURE	PRINTED NAME AND TITLE	COMPANY	DATE

NOTARY ACKNOWLEDGMENT – OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT

State of _____ County of _____

Subscribed and sworn to (or affirmed) before me on this _____ day of _____, 20____, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC – SIGNATURE _____ PRINTED NAME _____ COMMISSION EXPIRES _____

General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.

Conditional Waiver and Release on Final Payment

Form 2 of 2 · Takes effect only when the final payment described below has cleared

Summit Mechanical Contractors

4120 Industrial Way, Suite 200, Denver, CO 80216
(303) 555-0148 · office@summitmech.com · Lic. C-2214-MC

PARTIES AND PROJECT

the customer is whoever contracted with the claimant

CLAIMANT (YOU)	CUSTOMER (WHO HIRED YOU)	OWNER OF THE PROPERTY	PROJECT / PROPERTY
Summit Mechanical Contractors 4120 Industrial Way, Suite 200, Denver, CO 80216	Brightline Builders, Inc. 1550 Wewatta St, Denver, CO 80202	Harbor Point Development LLC 900 Wynkoop St, Denver, CO 80202	Harbor Point Medical Office – Building B 2200 Harbor Point Blvd, Denver, CO 80216

PAYMENT

the final payment, retention included

THROUGH DATE	PAYMENT AMOUNT	PAID BY (MAKER OF CHECK)	REFERENCE (APPLICATION / CHECK NO.)
November 30, 2026	\$49,735.45	Brightline Builders, Inc.	Final application for payment no. 6 – release of retention

WAIVER AND RELEASE

On receipt by the claimant of a check from the customer named above in the payment amount stated above, payable to the claimant, and when the check has been properly endorsed and has been paid by the bank on which it is drawn, this document becomes effective to release any mechanics lien, stop payment notice or payment bond right the claimant has on the job of the owner named above, located at the project stated above.

This release covers the final payment to the claimant for all labor, services, equipment or materials furnished on the job, including all retention, except for the disputed claims for additional work listed under exceptions below. Before any recipient of this document relies on it, that person should verify evidence of payment to the claimant.

EXCEPTIONS – THIS DOCUMENT DOES NOT AFFECT

list disputed extras or write none

DISPUTED CLAIMS FOR ADDITIONAL WORK	OTHER (CONTRACT WARRANTY AND INDEMNITY OBLIGATIONS SURVIVE)
\$0.00	None

DESCRIPTION OF EXCEPTIONS — change order numbers, amounts and status; disputed items

None. All approved change orders (CO-001 through CO-003) have been paid in full.

CLAIMANT'S SIGNATURE

sign with the pay application; effective when the payment clears

	Dana Whitfield, Project Manager	Summit Mechanical Contractors	12/04/2026
SIGNATURE	PRINTED NAME AND TITLE	COMPANY	DATE

NOTARY ACKNOWLEDGMENT – OPTIONAL UNLESS YOUR CONTRACT OR STATE REQUIRES IT

State of _____ County of _____

Subscribed and sworn to (or affirmed) before me on this _____ day of _____, 20____, by the person signing above, personally known to me or identified by satisfactory evidence.

NOTARY PUBLIC – SIGNATURE _____ PRINTED NAME _____ COMMISSION EXPIRES _____

General form for use where no statutory lien waiver form is prescribed. Twelve states prescribe the form and wording of lien waivers by statute — California, Texas, Arizona, Nevada, Utah, Georgia, Florida, Massachusetts, Michigan, Missouri, Mississippi and Wyoming — and a waiver on this form may be ineffective there; use the form in the statute or from the state agency and verify it is the current version. Not legal advice. Lien law, notice deadlines and waiver rules differ by state; have a construction attorney licensed in the project's state review before relying on this form.